

Extent and
citation.

5. This Act shall apply to Scotland only, and may be cited as the Burgh Police (Scotland) Amendment Act, 1911, and this Act and the Burgh Police (Scotland) Acts, 1892 to 1903, may be cited collectively as the Burgh Police (Scotland) Acts, 1892 to 1911.

CHAPTER 52.

An Act to prohibit the sale and use for the purpose of the manufacture of certain articles of unclean Flock manufactured from Rags. [16th December 1911.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Prohibition of
sale and use
for the purpose
of the manu-
facture of cer-
tain articles of
unclean flock
manufactured
from rags.

1.—(1) It shall not be lawful for any person to sell or have in his possession for sale flock manufactured from rags or to use for the purpose of making any article of upholstery, cushions, or bedding flock manufactured from rags or to have in his possession flock manufactured from rags intended to be used for any such purpose, unless the flock conforms to such standard of cleanliness as may be prescribed by regulations to be made by the Local Government Board, and, if any person sells or uses or has in his possession flock in contravention of this Act, he shall be liable on summary conviction to a fine not exceeding, in the case of a first offence, ten pounds, or in the case of a second or subsequent offence fifty pounds.

56 & 57 Vict.
c. 65.

(2) All regulations made by the Local Government Board under this Act shall be laid before Parliament as soon as may be after they are made, and the Rules Publication Act, 1893, shall apply to such regulations as if they were statutory rules within the meaning of section one of that Act.

(3) Where, in any proceedings against a person charged with an offence under this Act, it is proved that an offence under this Act has been committed, but that the person charged with the offence—

(a) purchased the flock in respect of which the offence was committed from a person resident within the United Kingdom who sold the flock under a warranty that it complied with the prescribed standard of cleanliness; and

(b) took reasonable steps to ascertain, and did in fact believe in, the accuracy of the statement contained in the warranty;

the person so charged shall be entitled upon an information duly laid by him to have the person who gave the warranty brought before the court, and that person may be summarily convicted of the offence, and the person originally charged shall be exempt

from any fine, and the person so convicted shall, in the discretion of the court, also be liable to pay any costs incidental to the proceedings.

(4) Where a person is charged with having flock in his possession in contravention of this Act any flock proved in the proceedings to have been found in his possession shall be deemed to be intended for sale or for use in the manufacture of such articles as aforesaid, unless the contrary is proved.

(5) It shall be the duty of a sanitary authority to enforce the provisions of this Act within their district, and for that purpose the medical officer of health, the inspector of nuisances or sanitary inspector, or any other officer whom the sanitary authority may appoint, shall have power, if so authorised by the sanitary authority, to institute and carry on any proceedings which the sanitary authority is authorised to institute and carry on under this Act, and to enter at all reasonable times any premises in which he has reasonable cause to believe that an offence under this Act is being committed, and to examine and take samples for the purposes of analysis of any flock found therein :

Provided that, where a sample is so taken, the occupier of the premises may require the officer taking the sample to divide it into two parts and to mark, seal, and deliver to him one part.

If any person wilfully obstructs any such officer in the execution of his powers under this section, he shall be liable on summary conviction to a fine not exceeding five pounds.

(6) The expenses of sanitary authorities under this Act shall be defrayed—

- (a) in the case of the mayor, aldermen and commons of the city of London in common council assembled, out of the general rate ;
- (b) in the case of the council of a metropolitan borough, as part of the expenses incurred by the council in the execution of the Public Health (London) Act, 1891 ;
- (c) in the case of any other sanitary authority, namely the council of a municipal borough or urban or rural district, as part of the general expenses incurred in the execution of the Public Health Acts.

54 & 55 Vict.
c. 76.

(7) All fines imposed in any proceedings instituted by a sanitary authority in pursuance of their powers and duties under this Act shall be paid to the sanitary authority and carried to the credit of the fund out of which the expenses incurred by the authority under this Act are defrayed.

(8) This Act shall apply to Scotland with the following modifications :—

- (a) The expression “Local Government Board” means the Local Government Board for Scotland ; the expression “sanitary authority” means the local authority under the Public Health (Scotland) Act, 1897 ; and the expression “inspector of nuisances” means sanitary inspector :

60 & 61 Vict.
c. 38.

- (b) The provision respecting the Rules Publication Act, 1893, shall have effect as if section one of that Act applied to Scotland with the substitution of the "Edinburgh Gazette" for the "London Gazette";
- (c) The expenses of a local authority under this Act shall be defrayed out of the public health general assessment levied under the Public Health (Scotland) Act, 1897.
- (9) This Act shall apply to Ireland with the following modifications:—
 - (a) The Local Government Board for Ireland shall be substituted for the Local Government Board;
 - (b) The Public Health (Ireland) Acts, 1878 to 1907, shall be substituted for the Public Health Acts; and
 - (c) The expression "medical officer of health" shall include a medical superintendent officer of health.

Short title
and com-
mencement.

2. This Act may be cited as the Rag Flock Act, 1911, and shall come into operation on the first day of July nineteen hundred and twelve.

CHAPTER 53.

An Act to amend the Law as to the Letting and Rating of small Dwelling-houses in Scotland; and for other purposes relating thereto. [16th December 1911.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Interpretation.

1. In this Act—

The expression "small dwelling-house" means a dwelling-house in a burgh or special district in which this Act is in operation, entered in the valuation roll at a yearly rent or value of—

Ten pounds or under if the population of the burgh or special district is less than twenty thousand;

Fifteen pounds or under if the population of the burgh or special district is twenty thousand and less than fifty thousand; and

Twenty-one pounds or under if the population of the burgh or special district is fifty thousand or upwards;

but shall not include any dwelling-house occupied by the owner thereof, or in which the owner resides, or any dwelling-house used as an inn or hotel, or any dwelling-house let along with land for agricultural, pastoral, or horticultural purposes, or any dwelling-house